

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 849 of 2011

Abdul Motin

.....Convict-petitioner.

-Versus-

The State

.....Opposite party.

No one appears

.....For the convict-petitioner.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.....For the State opposite party

Judgment on 28.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 30.09.2009 passed by the learned Additional Sessions Judge, 4th Court, Sylhet in Criminal Appeal No. 140 of 2005 affirming the judgment and order of conviction and sentence dated 10.08.2005 passed by the learned Additional District, Magistrate, Sylhet in Gowainghat Non G.R. No. 45 of 2002 corresponding to Gowainghat Police Station Non. F.I.R. No. 46 dated 13.07.2002 convicting the accused petitioner under Section 493 of Penal Code and sentencing him thereunder to

suffer rigorous imprisonment for a period of 02(two) years and to pay fine of Tk. 5,000 (five thousand) in default to suffer rigorous imprisonment for 2 (two) months more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

No one found present to press the Rule on repeated calls despite of fact that this criminal Revision has been appearing in the list for hearing with the name of the learned Advocate for the appellant for a number of days.

In view of the fact that this petty old criminal Revision arising out of 02(two) years sentence has been dragging before this Court for more than 12 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 13.07.2011 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 03(three) months, which was lastly extended on 05.12.2012 for a period of 06(six) months and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 05.06.2013. In that view of the matter, I have no hesitation to hold that the convict petitioner is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC wherein, it has been held by the Appellate Division that Court would not act in

aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Abdul Motin is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.